

FIELD GUIDE

FOR RESIDENTS & NEIGHBORS

Residents

How to ensure new data centers bring real benefits to your community – know the risks, get the facts, participate in the process, and use your legal and electoral options.

How to ensure new data centers bring benefits to communities.

Know the Risks

Watch for Red Flags:

- Unregulated data center externalities, such as noise, emissions, 24/7 lighting, and exposed mechanical equipment, in residential and agricultural zones.
- Local or state incentives for data centers that lock in long-term tax concessions, such as property tax exemptions (which would impact public services, such as K-12 education funding).
- The risk of “phantom load” or stranded assets if a developer abandons a project after the utility has already invested in upgrades can lead to increased residential energy costs.
- ◆ **Keep in Mind:** Data center facilities can bring local benefits, such as revenue, reduced taxes, community public service funds, expanded digital access, employment, and workforce and AI training. Community benefit agreements (CBAs) are one way to ensure these commitments materialize.

Get the Facts

- ◆ **Use Public Records:** Data center deals often lack transparency, but most U.S. state laws allow citizens to request records, such as non-disclosure agreements (NDAs).

PIMA COUNTY, AZ

In Pima County, AZ, a public records request revealed that the final user for a Project Blue data center campus was Amazon Web Services (AWS). The records revealed an NDA in which the county agreed not to share the name, and, if prompted, to give AWS 10 days’ notice to allow them to seek protective orders in court.

- ◆ **Leverage Expert Help:** Reach out to Civil Society Organizations (CSOs) to obtain a cost-benefit analysis of the project and determine if it will increase energy rates for the average ratepayer.

SOUTH MEMPHIS, TN

The South Memphis, Tennessee xAI Colossus data center campus operated 20 unpermitted gas turbines and consumed double its permitted capacity. A civil society organization commissioned independent flyovers after residents reported gas smells. After nearby residents reported their respiratory symptoms to journalists, a TIME Magazine-commissioned independent analysis revealed a 79% spike in peak pollutant levels near the facility.

- ◆ **Adopt Proven Strategies:** Use online trackers, such as datacentertracker.org and the [Data Center Regulation Tracker](#), to see what's happening nearby and throughout the country to find examples of effective advocacy strategies.

Participate in the Process

Ask for Transparency:

- Demand transparency on the incentives data centers received. Ask local officials (Planning Commissions, City Councils, Public Utility Commissions) for a breakdown of contract agreements and tax exemptions before any vote occurs.
- Use city council or town board meetings, public hearings, state legislative public hearings, and public comment periods.
- Voice concerns at state Public Utility Commissions (PUC) rate case proceedings (the formal regulatory forums where the cost impacts of data center infrastructure are debated).

FYI: PUCs act as quasi-judicial mediators between providers and the public to ensure customers receive safe, reliable, and affordable service.

Ask Questions:

- *Who is responsible for the cost of transmission and grid upgrades at the outset?*
- *What is the contingency plan if multiple facilities suddenly disconnect and strain the grid?*
- *Are developers paying upfront costs in case hyperscalers (Google, Meta, Amazon) do not use the facility after it is built?*
- *Have county officials proposed Community Benefit Agreements (CBAs)?*
- *What kinds of incentives have local governments granted to developers?*
- ◆ **Show up in Numbers:** A large presence at public hearings and thousands of signatures on petition platforms like Change.org provide a rationale for officials to consider community input.

- ◆ **Organize:** Use social media groups and webpages to raise awareness. Form civil society organizations (CSOs), which can use internal resources to amplify individual voices.
- ◆ **Formally Intervene:** Contact advocacy groups to serve as “intervenor” in public utility proceedings, which grants the right to cross-examine witnesses and submit expert testimony to Public Utility Commissions (PUCs).

MINNESOTA

CURE MN served as an intervenor before the Minnesota Public Utility Commission and argued that an Amazon project proposal must undergo a full regulatory review. The PUC ultimately rejected Amazon’s request for exemption from the review.

Legal & Electoral Options

- ◆ **Vote for Utility Oversight:** In 11 states (e.g., GA, AZ, AL), citizens can vote directly for the PUC members who regulate electricity prices.

GEORGIA

In a Georgia Public Utility Commission election, two incumbents, who had voted to approve six rate increases for consumers over two years, were unseated.

- ◆ **Recall Processes:** If locally elected officials back unregulated buildouts that run counter to community interests or engage in wrongful acts, citizens can organize recall elections.

CASCADE LOCKS, OR

In Cascade Locks, Oregon, voters recalled two officials who backed a 10 MW data center, and two other project advocates lost their re-election bids.

- ◆ **Referendums:** Residents can collect signatures and place data center issues on the ballot.

PORT WASHINGTON, WI

In Port Washington, Wisconsin, residents formed a nonprofit, collected roughly 1,000 signatures, and placed a data center transparency ordinance on the ballot for a referendum vote. The measure passed and now requires voter approval before the city grants tax incentives to data centers.

- ◆ **The Legal Option:** Harmed residents can file lawsuits when officials engage in opaque decision making and violate zoning laws.

PRINCE WILLIAM COUNTY, VA

Residents successfully sued to overturn a rezoning decision due to inadequate public notice.